2026 Judicial Practices and Procedures
Indian River County Domestic Relations Division
(last modified June 17, 2026)

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A. Communications with the Judicial Office

- **Preferred Method of Communication:** Emails will receive immediate attention. All communications to the judicial office must be submitted by e-mail to IRCJudge4@circuit19.org.

    - The subject line must contain the case number, case name, and relevant matter (e.g., 2024 DR 001234 SC – Doe v. Doe - 2-Hour Hearing Requested.)
    - The body of the email must contain a brief description of the purpose of the email.
    - Documents submitted to this office by email should be attached as a document with a name that is easily identifiable and searchable

and must contain the short case style and short case number for reference.

- **Ex parte Communications:** All communications with the judicial office must comply with Canon 3 of the Code of Judicial Conduct, which prohibits a judge from initiating, permitting, or considering ex parte communications and from considering other communications outside the presence of the parties concerning a pending or impending proceeding, unless authorized by law. All parties must be copied on any e-mail directed to the judicial office, and CLEARLY indicate that you have done so in the email, unless an ex parte communication is authorized by law.

- **Unsolicited Communications:** Please do not contact the judge's office expecting to communicate with the judge. Do not ask the judicial assistant or other Court personnel to communicate any message to the judge, as this is prohibited ex-parte communication. The judicial assistant is not authorized to provide any legal advice.

- **E-Filing Portal Contact Information:** All attorneys and self-represented litigants must provide an e-mail address to receive signed orders electronically, unless excused. Fla. R. Gen. Prac. & Jud. Admin. 2.516. It is the responsibility of attorneys and self-represented litigants to update their contact information using Form 2.603 any time there is a change in the e-mail account registered for electronic service.

- **Response to Inquiries:** Should you have any questions about scheduling or any regarding this office's procedures not answered in this document, you may contact the judicial assistant by email at: IRCJudge4@circuit19.org. Please be patient as we try to respond to your email at the earliest possible opportunity. DO NOT submit multiple emails concerning the same subject matter. When following up on an email submitted to the Court, please respond to the original email containing your submission/inquiry.

- **Legal Advice:** Should you contact this office with any legal questions and/or advice, please be advised we are not at liberty to provide any legal advice but do advise that you contact an attorney of your choosing. You may also wish to visit the *Access to Justice Self-Help Center* located on the first floor of the Indian River County Courthouse. Visit www.A2Jirc.org for additional information.

- **If you do not have an attorney:** The Judge must apply the same rules to all parties, regardless of whether you have an attorney. The Judge will not speak with you about your case outside of the courtroom. Your opportunity to speak with the Judge is only during your scheduled hearing. The judicial assistant may not help you with your case or send information

to other parties or attorneys on your behalf. Additionally, please do not ask the judicial assistant for the outcome of a hearing or verify that an order has been signed; you may review the Clerk's online docket for details about your case. Please remember anything you file with the Clerk must be provided to the opposing attorney or party.

- ***Pro se*/Self-represented parties:** Petitioners and/or Respondents without an attorney are *Pro se*. If both parties are *Pro se*/self-represented, the case will be referred to a *Pro se* Case Manager. If your case is *Pro se* and you wish to inquire about your case status or are looking to schedule a hearing, you may complete a Form A or Form B (as applicable). Carefully review the instructions prior to submitting the applicable form. Please make sure you select the county your case is filed in and that the form is filled out completely. Your assigned case manager will receive the Form A or Form B and will contact you via email at the earliest possible opportunity. If the other party is represented by an attorney, you must submit your inquiries via email to IRCjudge4@circuit19.org and include opposing counsel in your communication.

B. Scheduling Procedures

- **Court Schedule:** The online calendar is the most accurate representation of the Court's schedule. Typically, the Court's calendar is set as follows:

    - Pro se hearings, uncontested final hearings, and case management conference/docket call hearings are scheduled on Tuesday.
    - Injunction/domestic violence hearings, uniform motion calendar, and family motions hearings (set for one (1) hour or less) are scheduled on Wednesday.
    - Trials are scheduled for Thursday and Friday.

- **Scheduling Hearings:** All motions/petitions must be filed with the Clerk of Court before you contact this office for hearing time or set the motion for hearing on the online calendaring system. Hearings that are not emergencies shall not be scheduled less than five (5) business days in advance.

    - **Cooperation of Counsel:** Hearings must be coordinated with opposing counsel and/or pro se parties. Good faith cooperation is expected and required from counsel, their support staff, and pro se litigants. Should counsel, their staff, or pro se litigants fail to respond within three (3) business days or refuse to cooperate in obtaining or in setting a hearing, the difficulty should be set forth in the Notice of Hearing. After three (3) business days, the

requesting party may unilaterally set the hearing. Notice of the hearing must be provided at least five (5) business days prior to the hearing. All Notices of Hearing must contain a certificate of good faith as follows:

I HEREBY CERTIFY *that I have personally contacted opposing counsel/party in an effort to resolve the issue(s); however, the matter cannot be resolved, and a hearing is necessary.*

- **Injunctions for Protection/Domestic Violence:** DO NOT schedule injunction for protection cases (all types) using the online calendaring system. The Clerk will provide the filed petition to the Court, and the Court will issue an appropriate order and set the date for the hearing. If you have filed a motion in an injunction case, you must submit the motion via email to IRCJudge4@circuit19.org, and the Court shall set the motion for hearing on the next available "DV docket". These hearings may not be cancelled or continued without a court order.

  All Injunction for Protection/Domestic Violence hearings are conducted in-person. Remote appearances must comply with Rule 2.530.

- **Uniform Motion Calendar (UMC):** UMC hearings may be scheduled using the online calendaring system. Prior to setting a matter on the UMC, the party or attorney noticing the motion shall attempt to resolve the matter and shall, in the Notice of Hearing, certify what attempts have been made to resolve the issue without the need for a hearing and the outcome of those attempts.

  Hearings on the UMC are limited to five (5) to ten (10) minutes per case (not per motion) and only non-evidentiary motions will be heard on the UMC. Pursuant to Administrative Order 2015-12, Civil Contempt, Temporary Relief, and non-routine evidentiary matters shall not be heard at UMC.

- **Hearings one (1) hour or less:** All hearings (generally evidentiary in nature) one hour or less, may be scheduled using the online calendaring system on the *Family Hearings/Motions docket.* Prior to setting a matter for a hearing, the party or attorney noticing the motion shall attempt to resolve the matter and shall, in the Notice of Hearing, certify what attempts have been made to resolve the issue without the need for hearing. All motions hearings may be scheduled on the Family Hearings motion docket.

  DO NOT schedule motions on the *Family Final Hearings*

docket.

- **Hearings more than one (1) hour:** Contact the judicial assistant by email to IRCJudge4@circuit19.org to obtain hearing dates and times to coordinate with opposing counsel/parties. Your email must include: a copy of the filed motion/petition, the amount of time requested for all parties to be heard, and that attempts to resolve the issue have failed.

  Pursuant to Administrative Order 2015-12, unless otherwise determined by the Court, any party who seeks to schedule a trial or hearing on any contested issue, other than contempt, enforcement, injunctions against domestic or repeat violence, or Title IV-D actions, which will take more than one (1) hour, shall first participate in mediation.

- **Uncontested final hearings:** All uncontested final hearings may be scheduled using the online calendaring system on the *Family Final Hearings* docket. Prior to the scheduling of a final hearing, the moving party shall first complete and file the Verified Checklist for the specific case type located on the judge's webpage. For reference, please review Required Documents for Final Hearings also located on the Judge's webpage.

  Failure to complete the verified checklist and ensure all required documents are filed will result in your final hearing being stricken from the Court's docket by order without further notice or warning.

  Uncontested final hearings on *a petition for dissolution of marriage* require a final hearing and will be limited to five (5) to ten (10) minutes. This office does not accept affidavits and waivers of final judgment hearing.

  Uncontested adoptions, name changes, petitions for support, petitions for legal custody, and paternity actions that require fifteen (15) minutes or less may be scheduled on the *Family Final Hearings* docket. If more than fifteen (15) minutes is needed, you must schedule on the *Family Hearings/Motions* docket.

  It is preferred that uncontested final hearings be scheduled on the *Family Final Hearings* docket, however, the *UMC* and *Family Hearings/Motions* docket may be utilized if needed.

  FLA. STAT. §61.19: No final judgment of dissolution of marriage may be entered until at least twenty (20) days have elapsed from

the date of filing the original petition for dissolution of marriage; however, the Court, upon a showing that injustice would result from this delay, may enter a final judgment of dissolution of marriage at an earlier date.

- **Default final hearings:** Default final hearings may be scheduled using the online calendaring system and should be scheduled on the Court's *Family Hearings/Motions* docket or the *Family Final Hearings* docket. Prior to the scheduling of a default final hearing, the moving party shall first complete and file the Verified Checklist for the specific case type located on the judge's webpage. For reference, please review Required Documents for Final Hearings also located on the Judge's webpage.

  The default final hearing should be scheduled for 15 minutes to 1 hour, depending on the issues involved. If the final hearing is set for more than 15 minutes, you must schedule on the *Family Hearings/Motions* docket. If the final hearing is set for fifteen (15) minutes or less, you may schedule on the *Family Final Hearings* docket. If there is no physical evidence and only testimony is required, the default final hearing may be scheduled via Zoom.

  The defaulted party must be notified of the hearing at least fifteen (15) business days prior to the hearing.

- **Pro se hearings:** Cases that DO NOT have attorneys shall not schedule any hearings using the online calendaring system. If you wish to schedule a hearing, you must contact the *Pro se* family case manager by completing a Form A or Form B (as applicable).

- **If you are Pro se and the opposing party is represented by counsel,** you must contact the judicial assistant via email to IRCJudge4@circuit19.org to obtain hearing dates and times. Your email must include: a copy of the filed motion/petition, the amount of time requested for all parties to be heard, and that attempts to resolve the issue have failed. You must include opposing counsel in your email to the Court.

- **If parties are unable to identify a hearing date and time on the online calendaring system, the scheduling party should e-mail the judicial assistant, copying opposing counsel and any self-represented litigant, to coordinate the scheduling of the hearing.**

- **Notice of Hearing:** It is the moving party's responsibility to file a Notice of Hearing no later than two (2) business days after the hearing is

added to the online judicial calendar. A notice of hearing involving any remote appearance must list the judicial Zoom credentials. In-person notices of hearing must include a copy of Florida Rule of General Practice and Judicial Administration 2.530. All notices of hearing must contain the ADA notification required by Florida Rule of General Practice and Judicial Administration 2.540.

Failure to file a notice of hearing will result in the hearing being stricken from the Court's online calendaring system by order without further notice.

- **Hearing Packets:** Once a hearing date and time has been confirmed, the moving party shall furnish the Judge by email to IRCJudge4@circuit19.org a copy of the motion to be heard, the Notice of Hearing, and a Proposed Order in WORD format, at least five (5) business days prior to the scheduled hearing. The day of the hearing does not count as the fifth day.

The Proposed Order/Proposed Final Judgment must reflect the date of the hearing and contain a complete service list.

Hearing Packets for Final Hearings should contain copies of exhibits to be attached to the Final Judgment (e.g. Marital Settlement Agreement/Mediation Agreement, Parenting Plan, and Child Support Guidelines Worksheet – if applicable, in PDF format) and must be properly marked as referenced in the Final Judgment. The document file name must indicate that it is an exhibit.

(Example: Doe v Doe 21DR37 Exhibit A MSA or simply Exhibit A).

Hearing packets for matters involving child support to be paid through a withholding order must include a completed Supreme Court approved Income Deduction Order (Form 12.996(a)) and a completed Federal Income Withholding Order (Form 12.996).

Failure to provide the hearing packet will result in the hearing being stricken from the Court's docket by order without further notice or warning.

- **Order of Proceedings:** Matters will be heard in the order they appear on the docket unless a special request is made directly to the Court with opposing party/counsel's consent.

- **Continuance Procedure:** Continuances are disfavored and will be granted only upon good cause shown. Prior to submitting a request for continuance to the Judge, you must first contact the other party/attorney

and determine if they will stipulate to a continuance. If so, please submit a stipulation for continuance and a proposed order in WORD format via email to IRCJudge4@circuit19.org.

If there is no stipulation, you must file a motion and schedule a hearing on the *UMC* docket. Any such motion must be filed as soon as you are aware of the need for continuance. If an emergency occurs, contact the other party and the Court as soon as possible to resolve such an issue.

Except for good cause shown, all motions for continuance must be signed by the party requesting the continuance, as required by Florida Rule of General Practice and Judicial Administration 2.545(e).

- **Cancelling Hearings:** If your case (or motion) settles and you no longer require a hearing, you must file a Notice of Cancellation and email to the Judge to IRCJudge4@circuit19.org no later than 12:00 noon, the business day before the hearing, with a copy to all parties, so that it may be removed from the Court's docket.

It is the responsibility of the moving party to contact the judicial assistant to advise of the cancellation AND file a Notice of Cancellation in the court file. Simply filing a Notice of Cancellation does not automatically remove the hearing from the Court's docket.

Only the party noticing the matter for hearing may cancel the hearing. Trials or hearings scheduled by Court order (including Injunctions for Protection) may not be cancelled by a Notice.

- **Cross-notice, Piggybacks, or Substitutions:** Once a motion has been set for hearing, additional motions may not be cross-noticed, piggy-backed, or substituted during the time reserved for the original motion without the express consent of opposing counsel AND the Court. The scheduling party should be contacted for consent BEFORE seeking the Court's approval to add additional motions.

Any motion added, cross-noticed, or substituted without approval will not be heard.

- **Reserving Multiple Dates:** DO NOT reserve hearing time on the online judicial calendaring system unless you have coordinated the hearing date and time with opposing counsel/parties. The calendar system will not allow duplicate case entries on the same hearing date. If you need additional time on a scheduled hearing date, and there is time available on the calendar, you must FIRST confer with opposing counsel/parties.

If multiple dates and times are reserved for the same matter/case, and

there is no Notice of Hearing filed, the hearing will be stricken from the docket by order without notice or warning.

C. Court Attendance and Remote Appearance

- **Remote Appearance Procedure:** Uniform Motion Calendars, Case Management Conferences, Uncontested Final Hearings, and Non-Evidentiary Hearings thirty (30) minutes or less shall be held via Zoom teleconference, unless otherwise directed by the Court.

- **Zoom Meeting ID:** At the designated hearing time, you will appear through Zoom teleconferencing (without charge) via video by clicking https://zoom.us/j/5230674356 OR by phone by calling 1 (646) 558-8656; Meeting ID – 523 067 4356. *You will remain in the Zoom "WAITING ROOM" until your case is called, and the Court allows entry.* YOU MUST APPEAR BY VIDEO AND AUDIO TO TESTIFY AT THE REMOTE HEARING.

It is not necessary to have a Zoom account to participate in a remote hearing. However, you may be prompted to download the software once you have clicked on the meeting link. Additionally, if you use a smartphone, you may be prompted to download the Mobile App. This is not necessary. However, you may wish to create an account. Additional information about Zoom is available at www.Zoom.US.

- **In-Person Appearance Procedure:** All Trials, Evidentiary Hearings, Injunction for Protection Hearings, and hearings that require more than thirty (30) minutes are held in-person, in Courtroom 8, of the Indian River County Courthouse, located at 2000 16th Avenue, Vero Beach, Florida, unless otherwise directed by the Court.

- **Requests for Remote Appearances:** Any party requesting a remote appearance must comply with Rule 2.530, Fla. R. Jud. Admin.

D. Submission of Orders and Judgments

- **Format and Submission Method:** All proposed orders must be submitted via email to IRCJudge4@circuit19.org in WORD format along with a copy of the e-filed motion/petition in PDF format. Except for proposed orders submitted before a scheduled hearing, the email must either (1) certify that all parties agree to the order or (2) contain a statement identifying any disagreement of the parties as to the proposed order. The proposed order must reflect if it is ex-parte (considered in chambers) or heard in Court, indicating the date of the scheduled hearing. Please ensure that the motion being addressed in the proposed order is filed through the E-Portal. **Do not file or submit proposed orders**

through the E-Portal.

- **Service List:** All proposed orders must contain a complete service list, setting forth e-service addresses, as well as any postal addresses if there is no e-service address on file. Do not reflect that service was made on "all counsel of record." SIGNED ORDERS WILL BE E-FILED AND E-SERVED THROUGH THE PORTAL ONLY.

If a Pro se party does not have an e-service address, THE MOVING PARTY SHALL BE RESPONSIBLE to serve the opposing party via U.S. mail, including but not limited to copies of any filed document that contains the parties' physical service address (e.g. Motion, Notice of Hearing, and executed Orders signed and e-filed by the Judge).

- **Deadline for Submitting Proposed Orders before a scheduled hearing:** At least five (5) business days before the hearing.

- **Submitting Proposed Orders after a scheduled hearing:** The Court may request the moving party (or both parties) to submit a revised proposed order pursuant to the outcome of the hearing. The revised proposed order must be submitted by the deadline provided by the Court and include opposing counsel/Pro se party in the submission email. Counsel must advise the Court of any objection to the form of the proposed order upon submission. <u>The Court does not allow the hearing/motion to be reargued through email. If there are still outstanding issues, the Court will give instruction on how to proceed and possibly set an additional hearing.</u>

- **Stipulations:** If the parties have reached an agreement, a signed stipulation must be e-filed through the E-portal. Submit a copy of the filed stipulation to the Court via email along with a proposed Order Approving Stipulation in WORD format.

- **Following up on Proposed Orders**: If the Court takes a matter under advisement, the Court makes every effort to rule as quickly as possible. Do not call the judicial assistant to ask about the status of the Order.

If four (4) weeks have elapsed without a ruling, the movant may email the judicial assistant to advise the matter has been under advisement for four (4) weeks. The four (4) weeks begin upon the Court's receipt of the last post-hearing submission (e.g., transcripts, supplemental briefs, legal authority, proposed orders).

When following up on a proposed order submitted to the Court for review or from a scheduled hearing, please respond to the original

email containing your submission/hearing packet.

E. Courtesy Copies of Case Law and Other Documents

- **When Required:** When counsel/party intend to rely on case law or other documents for a hearing, an electronic courtesy copy must be submitted to the Court, and a copy of same must be made available to the opposing party.

- **Format:** Proposed Orders must be submitted in WORD format. All other documents may be submitted in PDF format. Pertinent sections must be highlighted.

- **Submission Method:** Via e-mail to IRCJudge4@circuit19.org.

- **Deadline for Submissions:** Courtesy copies must be emailed to the court no later than five (5) days prior to any scheduled hearing.

F. Emergencies and Other Urgent Matters

- **Requirements:** If a party believes there is a factual basis for setting an emergency hearing, a detailed motion setting forth the following must be filed:

  (1) That the movant first conferred with or made a good faith effort to contact opposing counsel/pro se party to resolve the matter without Court intervention (efforts to be delineated in the motion re: contact and resolution);
  (2) the issues to be resolved;
  (3) reasons why an emergency hearing is necessary; and
  (4) the amount of time needed for each party's presentation.

- **Scheduling:** The emergency motion shall be filed with the Clerk of Court and a copy emailed to the Court at IRCJudge4@circuit19.org advising of the motion, along with a proposed *Emergency Handling Order* located on the judge's webpage. The word "EMERGENCY" should appear in the subject line as well as the short style of the case and case number. If, after review, the Court determines that the issue(s) qualify as an "emergency" under the prevailing case law or whether a hardship exists thus justifying the waiver of mediation or the setting of an expedited hearing, a hearing will be scheduled unilaterally by the court. All parties shall make themselves available for the emergency hearing, barring exigent circumstances.

- The Court may issue an order requesting the non-moving party

to file a written response.

- Failure to follow the steps as outlined in this section will constitute a basis for denial of the motion. Failure to plan does not constitute an emergency.

G. Exhibits for Evidentiary Proceedings

- **Submission Method:** Hard copies of all evidence/exhibits, including electronic media, must be brought to the hearing/trial and be pre-marked using the evidence template. Do not submit evidence/exhibits directly to the judge's office. The Court will not review or consider any evidence/exhibit before being admitted during the scheduled hearing/trial.

- **Format:** Two (2) copies of all evidence/exhibits must be brought to the hearing/trial in paper format: one (1) shall be the original evidence/exhibit, and one (1) shall be provided to the judge. Video, audio recordings, and any other electronic media must be forwarded to the Clerk on a CD. The CD must be labeled with the case number, case style, and evidence/exhibit number. Thumb drives will not be accepted.

- **Deadline for Submissions:** All evidence/exhibits and a copy of the Exhibit List must be provided to the opposing party/counsel within the deadlines established by your pre-trial order or Florida rule. IF NONE, then, at least five (5) business days prior to the hearing/trial.

- **Pre-marking:** Attorneys shall pre-mark their own exhibits for identification. Pro se/self-represented parties shall deliver their exhibits fo the Clerk of Court, in-person, for pre-marking no less than five (5) business days prior to the hearing/trial. The clerk will mark the exhibits and return them to the party with instructions to bring them as marked to the hearing/trial.

- ALL EVIDENTIARY HEARINGS AND TRIALS ARE REQUIRED TO BE IN-PERSON UNLESS REMOTE APPEARANCE IS GRANTED BY MOTION.

H. Pretrial Procedures and Conferences

- **Case Management Conference/Status Conference:** The Court, upon its own motion, may set a case for a case management conference (CMC) or status conference at any time. Any party requesting a specific CMC or status conference must file a motion that details the reasons for the request.

- **Scheduling:** If the court agrees that a CMC or status conference is required, the moving party may schedule the CMC or status conference through the online calendaring system. Notices for Trial are scheduled by the Court by Order and should not be set on the online calendaring system.

I. Setting Case for Trial

- **Procedure:** After the parties have attended and completed mediation as required by Administrative Order 2015-12, a Notice for Trial must be filed containing a Good Faith estimate of time required for trial after conferring with opposing party/parties and set forth the relevant pleadings that are to be disposed of. After receipt of the Notice for Trial, you will receive an Order Setting Case Management Conference/Pre-Trial/Docket Call.

Notices for Trial are scheduled in the order received on the Court's next available Case Management Conference/Docket Call.

ALL PARTIES AND COUNSEL ARE REQUIRED TO BE PRESENT AT THE CASE MANAGEMENT CONFERENCE/PRE-TRIAL/DOCKET CALL.

- **Back-up Trials:** Due to the volume of cases and the Court's availability for scheduling trials, the Court may find it necessary to schedule a case as a back-up trial. If this occurs, at the Case Management Conference/Pre-Trial/Docket Call hearing, the Court will provide the parties/counsel with the case information for the trial scheduled before them. The Court will contact the parties/counsel in the event the case scheduled before them has settled. All parties and counsel shall be prepared to move forward on the back-up trial date and shall comply with the provisions set forth in the Order Setting Trial unless otherwise directed by the Court.

- **Sanctions:** Failure to appear for trial will be grounds for sanctions being imposed, including, but not limited to, attorney fees, costs, striking of pleadings, default, or dismissal.

- **Interpreters:** The responsibility for scheduling and securing an interpreter rests solely with the person in need of interpreting services.

- **Court Reporters:** In absence of agreement otherwise, it is the responsibility of the moving party to arrange for a court reporter to be present, if deemed necessary, and to be responsible for payment of the court reporter's services. The Court does not require a court reporter to be present; however, failure to provide a transcript for an appeal is likely to prevent a successful appeal.

- **Daubert Motions:** Any Daubert motion must be filed at least fifteen (15) days prior to the first day of trial and a copy provided to IRCJudge4@circuit19.org. Daubert motions will be considered waived if not filed at least fifteen (15) days prior to the first day of trial.

- **Case Dispositions:** If at any time after the entry of the Order Setting Trial, a case is dismissed, or results in a complete settlement, counsel must immediately notify the judicial assistant by email at IRCJudge4@circuit19.org. A final hearing may be held on the trial date; however, if a sooner date is needed, counsel may schedule on the Family Final Hearings docket once the trial is removed/canceled from the trial docket. Counsel is required to follow the procedures for moving forward with a final hearing. If the necessary paperwork is not filed in the court file, the Court will not move forward with a final hearing.

J. Forms and Motion Practices

- **Access:** Family Law Forms are available on the State Court's website at Family Law Forms - Florida Courts. Standard orders and final hearing materials are available on the judge's webpage.

- **Usage:** Division forms must be used for all relevant filings.

- **Injunctions for Protection Forms:** You must contact the Domestic Violence Clerk in person or at (772) 226-3100 to obtain or file a petition for injunction.

- **Motions to Compel:** If there is a Motion to Compel a Response to Discovery for a complete failure to respond, you may submit a copy of the filed motion to the Court with a proposed order giving the opposing party ten (10) days from the date of the order to comply.

You must comply with Fla.Fam.L.R.P. 12.380. There is no requirement for a hearing on such a motion, and the Court will issue an order. Gaspar, Inc. v. Naples Fed. Sav. & Loan Ass'n., 546 So.2d 764 (Fla. 5th DCA 1989).

- **Motions to Withdraw as Counsel:** Rule 2.505(f)(1) Fla. R. Jud. Admin and Fla. Fam. L.R.P. 12.040 – The motion must contain the client's last known address, phone number (including area code), and e-service address (if available). If not available, the motion must state, not available. Additionally, the motion must set forth the next court date or that there are no future court dates. If set for trial, the motion must state the date of trial.

You must obtain the client's consent, in writing, which shall be filed

with the Clerk of Court, or a hearing must be held after proper notice to the client. Motions to Withdraw may be scheduled by using the online judicial calendaring system on the UMC or Family Hearings motion docket.

If a consent by the client has been filed, you may submit via email to IRCJudge4@circuit19.org a copy of the motion and client's consent with a proposed order in WORD format. If the client's consent is obtained after the motion has been filed, you must file an amended motion referring to the consent.

- **Motions for Rehearing/Reconsideration:** DO NOT schedule a Motion for Rehearing/Reconsideration on the online judicial calendaring system. Submit a copy of the e-filed motion in PDF format, together with a proposed order in WORD format, via email to IRCJudge4@circuit19.org for the Court's consideration with all parties/opposing counsel copied. The Court shall issue an order accordingly.

- **Motions for Temporary Relief:** Pursuant to Administrative Order 2015-12, parties must attend mediation before a Temporary Relief Hearing may be set. *If a temporary relief hearing is set without first having been to mediation, your motion will not be heard, and your hearing will be stricken from the Court's docket by order without further notice or warning.*

If the temporary relief motion involves financial issues, both parties must have up-to-date Financial Affidavits filed in the court file prior to the scheduling of the motion for hearing.

- **Motions to Allow Child Testimony:** No other entity can permit attendance of a child to a hearing other than the Court's office. See Rule 12.407, Florida Rules of Family Procedure. Child testimony is not permitted unless a Motion to Allow Child Testimony has been filed, set for hearing, and granted by Court order. Do not bring children to the courtroom without prior approval of the Court.

- **Litigation by letter or email:** The Court does not allow litigation by letter or email. If the parties cannot agree on an issue, the appropriate motion should be filed and set for hearing.

K. Other Division Procedures

- **Mediation:** Family mediation involves parties to a divorce, paternity, or similar family matters. Parties having a combined gross income of up to $100,000.00 may utilize the 19th Judicial Circuit Mediation Program. The mediators assist parties in identifying issues, solutions, and alternatives, always keeping in mind the best interests of

their children when children are involved. The mediator's objective during the session is to help parties reach a mutually acceptable agreement on disputed issues: parenting arrangements, child support, property/debt division, and other issues. Please visit the circuit's website for further information on the Mediation Program.

Parties not qualifying for the Circuit's Mediation Program shall attend mediation with a private mediator as coordinated by counsel. Counsel shall submit to the Court a proposed Order of Referral to Mediation.

Order of Referral to Family Mediation Program: When submitting a Proposed Order of Referral to Family Mediation, the proposed order must state the combined income for the parties and that both parties have current Financial Affidavits on record. The Proposed Order of Referral must be filled out completely and correct service/e-service addresses listed.

- **Post-Judgment cases:** Pursuant to Administrative Order 2013-02, all post-judgment matters will be referred to the Magistrate.

Order of Referral to General Magistrate: For attorney cases, if your motion/petition is post-judgment and does not already have a referral to the Magistrate, it is the responsibility of counsel to provide the Order of Referral to General Magistrate to the Magistrate's office, via e-mail, to IRCMagistrate@circuit19.org, using the template provided on the judge's webpage. Your email should contain a copy of the filed Motion(s)/Petition(s) to be referred to the Magistrate. *Please DO NOT submit an Order of Referral to Magistrate to Judge Griffin's office. You will be prompted to submit your referral to the Magistrate's office.*

Once a referral has been entered, you may object in a timely manner. If an objection is filed, the matter will be heard before the Judge. If no objection is filed, then the case will remain with the Magistrate. At that point, the Magistrate's Assistant will assist you with your case.

No preemptory objections will be accepted prior to the entry of the Order of Referral to General Magistrate, and any objection must comply with Fla. Fam. L. R. P. 12.490 or Fla. R. Juv. P. 8.257.

ANY POST-JUDGMENT MATTER NOT FOLLOWING THESE PROCEDURES WILL BE STRICKEN FROM THE COURT'S DOCKET BY ORDER WITHOUT FURTHER NOTICE.

- **ADA Accommodations:** If you need an ADA accommodation, please contact Court Administration at 772-807-4370, or complete the circuit's ADA Request Form. For more information, please visit the

Americans with Disabilities Act (ADA) webpage located on the circuit's website.

- **Court Reporters:** Only injunction hearings (domestic violence, dating violence, sexual violence, sexual violence, repeat violence and/or stalking) and adoption hearings are recorded. The Court does not provide a court reporter or digital recording for any other proceeding. It is the responsibility of the parties/attorneys to arrange for a court reporter to be present, if deemed necessary, and to be responsible for payment of the court reporter's services. Information on obtaining a transcript from a digitally recorded proceeding can be found on the Digital Court Reporting webpage located on the circuit's website.

- **Audio Visual Requests:** It is the responsibility of the parties/attorneys to plan for use of Audio-Visual equipment. Reservations are made through the circuit's website by submitting an Audio Visual Request Form. Carefully review the reservation requirements prior to submitting your request. Equipment is made available to all courtrooms on a first-come, first-served, basis.

- **Interpreter Requests:** If an interpreter is needed for a hearing or trial where a fundamental interest is at stake, please visit the Court Interpreters webpage located on the circuit's website.

- **Incarcerated Parties:** In-person appearance is required unless remote appearance is granted by motion. Attorneys and pro se parties are responsible for notifying the Court whether their client or opposing pro se party is incarcerated. The Indian River County Jail does not require an Order to Transport for inmates to appear in-person.

Attorneys: If the incarcerated party is located outside of Indian River County, you must file a Motion to Transport. Submit the e-filed motion to the Court for review, via email to IRCJudge4@circuit19.org, along with a proposed Order to Transport in WORD format, no later than fifteen (15) business days prior to the hearing/trial or as soon as counsel is made aware that their client or opposing party is incarcerated.

- **Clerks and Court Deputies:** Please be respectful of the Clerks and allow them to do their job. The Clerks are not the personal support staff for counsel appearing in the Division. Requests for the Clerk's assistance shall be channeled through the Court. All counsel are expected to come to Court with sufficient copies for all parties, counsel, and the Court. No copies will be made while Court is in session. The Court's deputies are present for the security of the courtroom and the safety of all participants. Please be respectful of the deputies and allow them to do their job. In emergency situations, counsel shall follow

all directives of the deputies in the courtroom and instruct their clients, witnesses, and participants to do the same.

- **Courtroom Etiquette and Decorum:** All parties and attorneys will be expected to conduct themselves in accordance with the Standards of Professional Courtesy outlined in Amended Administrative Order 2015-06.

Everyone will be expected to treat others as they would like to be treated. Disrespectful and discourteous behavior will not be tolerated under any circumstances. There shall be no talking over another. Counsel shall address all arguments to the Court and not opposing counsel. Counsel shall admonish their clients that gestures, facial expressions, or any manifestations of approval or disapproval of anything occurring in the courtroom is prohibited.

Please keep all cell phones and electronic devices silent or vibrate. Anyone who violates this rule may have their device confiscated until the closure of business.

All individuals entering the courtroom shall dress in a manner that shows respect for our Judicial System, including shirts being tucked in, pants being pulled up, no shorts, hats, or sunglasses.

- **Amendments to Procedures:** The Court may, from time to time, on its own initiative, amend these procedures without further notice. All counsel/parties are advised to check the judge's webpage on the Circuit 19 website and click on Family Court Procedures before undertaking any case in this Division to verify if any provisions or conditions have been amended or added to this procedural memo.

3/12/2025 Revised: 9/11/2025; 2/11/2026; 2/24/2026; 6/17/2026